

Pennsylvania Recreational Use Statute (68 P.S. § 477)

RECREATION USE OF LAND AND WATER

§ 477-1. Purpose; liability

The purpose of this act is to encourage owners of land to make land and water areas available to the public for recreational purposes by limiting their liability toward persons entering thereon for such purposes.

§ 477-2. Definitions

As used in this act:

- (1) "**Land**" means land, roads, water, watercourses, private ways and buildings, structures and machinery or equipment when attached to the realty.
- (2) "**Owner**" means the possessor of a fee interest, a tenant, lessee, occupant or person in control of the premises.
- (3) "**Recreational Purpose**" includes, but is not limited to, any of the following, or any combination thereof: hunting, fishing, swimming, boating, camping, picnicking, hiking, pleasure driving, nature study, water skiing, water sports, cave exploration and viewing or enjoying historical, archaeological, scenic, or scientific sites.
- (4) "**Charge**" means the admission price or fee asked in return for invitation or permission to enter or go upon the land.

§ 477-3. Duty to keep premises safe; warning

Except as specifically recognized or provided in section 6 of this act, an owner of land owes no duty of care to keep the premises safe for entry or use by others for recreational purposes, or to give any warnings of a dangerous condition, use, structure, or activity on such premises to persons entering for such purposes.

§ 477-4. Assurance of safe premises; duty of care; responsibility; liability

Except as specifically recognized by or provided in section 6 of this act, an owner of land who either directly or indirectly invites or permits without charge any person to use such property for recreational purposes does not thereby:

- (1) Extend any assurance that the premises are safe for any purpose.
- (2) Confer upon such person the legal status of an invitee or licensee to whom a duty of care is owed.
- (3) Assume responsibility for or incur liability for any injury to persons or property caused by an act of omission of such persons.

§ 477-5. Land leased to State or subdivision

Unless otherwise agreed in writing, the provisions of section 3 and 4 of this act shall be deemed applicable to the duties and liability of an owner of land leased to the State or any subdivision thereof for recreational purposes.

§ 477-6. Liability not limited

Nothing in this act limits in any way liability which otherwise exists:

- (1) For willful or malicious failure to guard or warn against a dangerous condition.
- (2) For injury suffered in any case where the owner of the land charges the person or persons who enter or go on the land for the recreational use thereof, except that in case of land leased to the State or a subdivision thereof, any consideration received by the owner for such lease shall not be deemed a charge within the meaning of this section.

§ 477-7. Construction of act

Nothing in this act shall be construed to:

- (1) Create a duty of care or ground of liability for injury to persons or property.
- (2) Relieve any person using the land of another for recreational purposes from any obligation which he may have in the absense of this act to exercise care in his use of such land and in his activities thereon, or from the legal consequences of failure to employ such care.

§ 477-8. Repealer

The act of September 27, 1961 (P.L. 1696), entitled * * * [section 1629 of title 12], is repealed.

All other acts or parts of acts are repealed in so far as inconsistent herewith.

Last modified: June 19, 1996

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